

19STLC08163 19STLC08163

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-06-29

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Case Number: 19STLC08163 Hearing Date: June 29, 2026 Dept: 25

HEARING

DATE: Mon., June 29, 2026 JUDGE/DEPT: Eisenman/25

CASE NAME: State Farm Mutual Automobile Insurance

Company v. McGarrah

COMP FILED: 09-05-19

CASE NUMBER: 19STLC08163

NOTICE: OK

PROCEEDINGS: MOTION TO VACATE DISMISSAL AND ENTER JUDGMENT

PURSUANT TO CCP § 664.6

MOVING PARTY: Plaintiff

State Farm Mutual Automobile Insurance Company

RESP. PARTY: None

MOTION TO ENTER JUDGMENT PURSUANT TO STIPULATION

(CCP § 664.6)

TENTATIVE RULING:

The Court GRANTS State Farm Mutual

Automobile Insurance Company's motion to vacate the dismissal and enter

judgment pursuant to the stipulation.

The dismissal entered on May 24, 2023,
is hereby SET ASIDE AND VACATED.

Judgement is entered in the amount of
\$4,400.00, reflecting \$15,296.23 in principal, \$500 in filing and service fees,
less \$11,396.23 for payments received.

State

Farm is to give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of June 22,
2026 [] Late [X] None

REPLY: None filed as
of June 22, 2026 [] Late [X]
None

ANALYSIS:

State

Farm Mutual Automobile Insurance Company filed a subrogation action against Jennifer McGarrah. The parties settled and entered a stipulation that required McGarrah's insurance carrier to pay a lump sum of \$8,896.23, McGarrah to make 12 monthly payments of \$50.00, followed by 58 monthly payments of \$100.00. The Court dismissed this action without prejudice and retained jurisdiction pursuant to Code of Civil Procedure section 664.6 to enforce the stipulation. McGarrah's insurance carrier made the

required payment, and McGarrah made payments until March 2026. State Farm properly notified McGarrah of default, she has failed to pay, and State Farm now seeks to enter judgment against McGarrah pursuant to the stipulation. McGarrah has not opposed State Farm's motion.

Code of

Civil Procedure section 664.6, subdivision (a), allows a court to enter judgment pursuant to the terms of a written, signed settlement. If the parties agree, a court may dismiss the case without prejudice and retain jurisdiction to enforce the settlement until full performance is made. (Ibid.)

The

stipulation between State Farm and McGarrah is valid and enforceable under Code of Civil Procedure section 664.6. In the event of breach, the stipulation provides for the entry of judgment in the principal sum—\$15,296.23—plus any costs associated with entering judgment not to exceed \$500.00, minus any payments McGarrah made before breaching.

State

Farm requests a judgment of \$4,400.00 against McGarrah, comprising \$15,296.23 in principal, \$500 in filing and service fees, less \$11,396.23 for payments received from McGarrah's insurance carrier and McGarrah. That amount is supported by State Farm's motion and the stipulation.

Accordingly,

the Court GRANTS State Farm's motion to set aside and vacate the dismissal entered on May 24, 2023, and enters judgment pursuant to the stipulation in the amount of \$4,400.00.

State

Farm is to give notice.